

SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE, AGENCIES, SYSTEMS, IDENTIFIERS, AND EVENTS — NOT A REAL FILING OR CYBERSECURITY GUIDE COUNTERFACTUAL APPELLATE BRANCH — NEVER FILED OR ENTERED ON THE ACTUAL DOCKET — ISOLATED DOCKET: SYN-CA4-26-CV-4106-CF-NEVER-OCCURRED

Never-Filed Order Granting Panel Rehearing

Court: United States Court of Appeals for the Fourth Circuit **Case:** Open Grid Archive v. United States Department of Energy **Isolated docket:** SYN-CA4-26-CV-4106-CF-NEVER-OCCURRED **Filed:** June 22, 2026

Open Grid’s petition for panel rehearing and rehearing en banc and DOE’s ordered response have been considered. The panel grants rehearing for the limited purpose of revisiting how the opinion explains the relationship among the corrected worksheet, the seventeen-passage supplemental release, and the four rulings affirmed on May 29.

The grant does not reject the corrected premise or decide the reheard appeal. It does not enlarge the responsive universe, expose a controlled value, or prejudge whether the existing judgment will change. The panel seeks a record on whether fuller public reasoning can address the petitioner’s concerns while retaining the premise’s distinction between a supported relation and neutral administration.

Under Fourth Circuit Internal Operating Procedure 40.2, granting panel rehearing vacates the May 29 counterfactual opinion and judgment within this fork, and the case will be reheard before Judges Vale, Quill, and Reed. The vacated disposition has no operative force while rehearing remains pending. The request for rehearing en banc is dismissed as moot without prejudice because the panel disposition has been vacated.

Scope of Rehearing

Rehearing is confined to the assumed corrections. The law-enforcement purpose, search adequacy, twelve-record inventory, 200-page source total, and production arithmetic remain fixed. The operational 7(E) showing remains unchanged. The panel will not accept real cyber information or a new responsive document.

The parties may address three related points: how the segment-level 7(F) correlations demonstrate causal fit; how the renewed line review and seventeen released passages support the residual segregation conclusions; and how the passage-specific sealing findings operate across public and controlled counterparts. They may also identify safe clarifications to the narrow 7(E) boundary.

This order grants process, not relief on the merits. No inference may be drawn from the decision to request additional focused explanation. The panel may adhere to, modify, or replace its former reasoning after considering the supplemental submission.

All proceedings remain on the isolated docket. The grant is mutually exclusive with any order denying the same petition, and no participant may combine those outcomes.

Direction to the Clerk

The Clerk shall mark the May 29 opinion and judgment vacated, preserve them as historical branch documents, and refrain from issuing mandate. A separate order will state the mandate status during rehearing. Existing limited access controls remain in force; this order itself grants no person access to a sealed counterpart.

The panel will enter a focused briefing order. Until then, the parties need not submit material and must not infer a filing date or eventual disposition. Any authorized controlled submission must comply with the existing counterfactual motion for limited sealing and certificate of confidentiality, including disclosure-specific access and verification.

Judges Vale, Quill, and Reed constitute the rehearing panel. Teren Wye shall serve this order on Tamsin Roe, Leo Marr, and Corin Pell through the fictional exercise system.

Panel rehearing is GRANTED on June 22, 2026. The en banc request is dismissed as moot without prejudice. Nothing here occurred on the actual appeal, and nothing supplies a real identity, technical value, contact method, system weakness, or implementable response instruction.